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REGISTER OF WAGE DETERMINATIONS UNDER
THE SERVICE CONTRACT ACT
By direction of the Secretary of Labor

U.S. DEPARTMENT OF LABOR
EMPLOYMENT STANDARDS ADMINISTRATION
WAGE AND HOUR DIVISION
WASHINGTON D.C. 20210

Daniel W. Simms Division of
Director Wage Determinations

Wage Determination No.: 2015-5381
Revision No.: 28
Date Of Last Revision: 3/30/2026

State: North Dakota

Area: North Dakota Counties of Adams, Billings, Bowman, Divide, Dunn,
Golden Valley, Hettinger, McKenzie,
Slope, Stark and Williams

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		18.76
01012 - Accounting Clerk II		21.05
01013 - Accounting Clerk III		23.55
01020 - Administrative Assistant		30.72
01035 - Court Reporter		21.99
01041 - Customer Service Representative I		18.18
01042 - Customer Service Representative II		19.98
01043 - Customer Service Representative III		22.29

01051 - Data Entry Operator I	16.15
01052 - Data Entry Operator II	17.62
01060 - Dispatcher, Motor Vehicle	29.87
01070 - Document Preparation Clerk	17.51
01090 - Duplicating Machine Operator	17.51
01111 - General Clerk I	20.03
01112 - General Clerk II	21.85
01113 - General Clerk III	24.53
01120 - Housing Referral Assistant	24.52
01141 - Messenger Courier	14.28
01191 - Order Clerk I	16.05
01192 - Order Clerk II	17.51
01261 - Personnel Assistant (Employment) I	19.66
01262 - Personnel Assistant (Employment) II	21.99
01263 - Personnel Assistant (Employment) III	24.52
01270 - Production Control Clerk	35.01
01290 - Rental Clerk	19.27
01300 - Scheduler, Maintenance	19.66
01311 - Secretary I	19.66
01312 - Secretary II	21.99
01313 - Secretary III	24.52
01320 - Service Order Dispatcher	26.71
01410 - Supply Technician	30.72
01420 - Survey Worker	21.99
01460 - Switchboard Operator/Receptionist	18.90
01531 - Travel Clerk I	16.11
01532 - Travel Clerk II	17.37
01533 - Travel Clerk III	18.41
01611 - Word Processor I	17.51
01612 - Word Processor II	19.66
01613 - Word Processor III	21.99
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	28.28
05010 - Automotive Electrician	22.87
05040 - Automotive Glass Installer	21.29
05070 - Automotive Worker	21.29
05110 - Mobile Equipment Servicer	18.21
05130 - Motor Equipment Metal Mechanic	24.22
05160 - Motor Equipment Metal Worker	21.29
05190 - Motor Vehicle Mechanic	24.22
05220 - Motor Vehicle Mechanic Helper	16.62
05250 - Motor Vehicle Upholstery Worker	19.75
05280 - Motor Vehicle Wrecker	21.29
05310 - Painter, Automotive	22.87
05340 - Radiator Repair Specialist	21.29
05370 - Tire Repairer	18.94
05400 - Transmission Repair Specialist	24.22

07000 - Food Preparation And Service Occupations	
07010 - Baker	20.19
07041 - Cook I	19.07
07042 - Cook II	22.29
07070 - Dishwasher	13.52
07130 - Food Service Worker	17.14
07210 - Meat Cutter	18.43
07260 - Waiter/Waitress	13.78
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	27.33
09040 - Furniture Handler	15.98
09080 - Furniture Refinisher	27.33
09090 - Furniture Refinisher Helper	19.86
09110 - Furniture Repairer, Minor	23.61
09130 - Upholsterer	27.33
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	16.37
11060 - Elevator Operator	18.72
11090 - Gardener	25.70
11122 - Housekeeping Aide	18.72
11150 - Janitor	18.72
11210 - Laborer, Grounds Maintenance	18.87
11240 - Maid or Houseman	15.72
11260 - Pruner	16.75
11270 - Tractor Operator	23.45
11330 - Trail Maintenance Worker	18.87
11360 - Window Cleaner	21.09
12000 - Health Occupations	
12010 - Ambulance Driver	18.36
12011 - Breath Alcohol Technician	26.51
12012 - Certified Occupational Therapist Assistant	33.36
12015 - Certified Physical Therapist Assistant	31.68
12020 - Dental Assistant	28.15
12025 - Dental Hygienist	40.89
12030 - EKG Technician	40.17
12035 - Electroneurodiagnostic Technologist	40.17
12040 - Emergency Medical Technician	18.36
12071 - Licensed Practical Nurse I	23.70
12072 - Licensed Practical Nurse II	26.51
12073 - Licensed Practical Nurse III	29.55
12100 - Medical Assistant	20.82
12130 - Medical Laboratory Technician	30.94
12160 - Medical Record Clerk	21.26
12190 - Medical Record Technician	23.78
12195 - Medical Transcriptionist	23.55
12210 - Nuclear Medicine Technologist	58.26

12221 - Nursing Assistant I	15.37
12222 - Nursing Assistant II	17.29
12223 - Nursing Assistant III	18.87
12224 - Nursing Assistant IV	21.18
12235 - Optical Dispenser	20.48
12236 - Optical Technician	23.70
12250 - Pharmacy Technician	23.35
12280 - Phlebotomist	22.21
12305 - Radiologic Technologist	31.64
12311 - Registered Nurse I	26.13
12312 - Registered Nurse II	31.95
12313 - Registered Nurse II, Specialist	31.95
12314 - Registered Nurse III	38.66
12315 - Registered Nurse III, Anesthetist	38.66
12316 - Registered Nurse IV	46.34
12317 - Scheduler (Drug and Alcohol Testing)	32.84
12320 - Substance Abuse Treatment Counselor	32.54
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.68
13012 - Exhibits Specialist II	26.85
13013 - Exhibits Specialist III	32.84
13041 - Illustrator I	21.68
13042 - Illustrator II	26.85
13043 - Illustrator III	32.84
13047 - Librarian	29.74
13050 - Library Aide/Clerk	17.27
13054 - Library Information Technology Systems Administrator	26.85
13058 - Library Technician	18.50
13061 - Media Specialist I	19.38
13062 - Media Specialist II	21.68
13063 - Media Specialist III	24.16
13071 - Photographer I	19.38
13072 - Photographer II	21.68
13073 - Photographer III	26.85
13074 - Photographer IV	32.84
13075 - Photographer V	39.73
13090 - Technical Order Library Clerk	21.68
13110 - Video Teleconference Technician	19.38
14000 - Information Technology Occupations	
14041 - Computer Operator I	21.46
14042 - Computer Operator II	24.01
14043 - Computer Operator III	26.77
14044 - Computer Operator IV	29.75
14045 - Computer Operator V	32.94
14071 - Computer Programmer I	(see 1) 19.62
14072 - Computer Programmer II	(see 1) 24.31

14073 - Computer Programmer III	(see 1)	
14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	26.81
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		21.46
14160 - Personal Computer Support Technician		29.75
14170 - System Support Specialist		33.65
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		26.77
15020 - Aircrew Training Devices Instructor (Rated)		32.40
15030 - Air Crew Training Devices Instructor (Pilot)		38.83
15050 - Computer Based Training Specialist / Instructor		26.77
15060 - Educational Technologist		36.99
15070 - Flight Instructor (Pilot)		38.83
15080 - Graphic Artist		24.59
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		38.83
15086 - Maintenance Test Pilot, Rotary Wing		38.83
15088 - Non-Maintenance Test/Co-Pilot		38.83
15090 - Technical Instructor		26.42
15095 - Technical Instructor/Course Developer		32.32
15110 - Test Proctor		21.33
15120 - Tutor		21.33
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		11.54
16030 - Counter Attendant		11.54
16040 - Dry Cleaner		13.51
16070 - Finisher, Flatwork, Machine		11.54
16090 - Presser, Hand		11.54
16110 - Presser, Machine, Drycleaning		11.54
16130 - Presser, Machine, Shirts		11.54
16160 - Presser, Machine, Wearing Apparel, Laundry		11.54
16190 - Sewing Machine Operator		14.12
16220 - Tailor		14.74
16250 - Washer, Machine		12.17
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		32.79
19040 - Tool And Die Maker		39.07
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		24.56
21030 - Material Coordinator		35.01
21040 - Material Expediter		35.01

21050 - Material Handling Laborer	22.25
21071 - Order Filler	18.62
21080 - Production Line Worker (Food Processing)	24.56
21110 - Shipping Packer	23.43
21130 - Shipping/Receiving Clerk	23.43
21140 - Store Worker I	14.14
21150 - Stock Clerk	19.59
21210 - Tools And Parts Attendant	24.56
21410 - Warehouse Specialist	24.56
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	37.49
23019 - Aircraft Logs and Records Technician	29.29
23021 - Aircraft Mechanic I	35.90
23022 - Aircraft Mechanic II	37.49
23023 - Aircraft Mechanic III	38.91
23040 - Aircraft Mechanic Helper	24.64
23050 - Aircraft, Painter	33.90
23060 - Aircraft Servicer	29.29
23070 - Aircraft Survival Flight Equipment Technician	33.90
23080 - Aircraft Worker	31.57
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	31.57
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	35.90
23110 - Appliance Mechanic	32.79
23120 - Bicycle Repairer	26.11
23125 - Cable Splicer	49.95
23130 - Carpenter, Maintenance	26.17
23140 - Carpet Layer	30.53
23160 - Electrician, Maintenance	38.38
23181 - Electronics Technician Maintenance I	43.29
23182 - Electronics Technician Maintenance II	46.50
23183 - Electronics Technician Maintenance III	49.24
23260 - Fabric Worker	28.32
23290 - Fire Alarm System Mechanic	34.72
23310 - Fire Extinguisher Repairer	26.11
23311 - Fuel Distribution System Mechanic	48.79
23312 - Fuel Distribution System Operator	36.69
23370 - General Maintenance Worker	24.18
23380 - Ground Support Equipment Mechanic	35.90
23381 - Ground Support Equipment Servicer	29.29
23382 - Ground Support Equipment Worker	31.57
23391 - Gunsmith I	26.11
23392 - Gunsmith II	30.53
23393 - Gunsmith III	34.72
23410 - Heating, Ventilation And Air-Conditioning Mechanic	36.11

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	36.34
23430 - Heavy Equipment Mechanic	35.30
23440 - Heavy Equipment Operator	32.23
23460 - Instrument Mechanic	34.72
23465 - Laboratory/Shelter Mechanic	32.79
23470 - Laborer	22.25
23510 - Locksmith	32.79
23530 - Machinery Maintenance Mechanic	32.98
23550 - Machinist, Maintenance	28.73
23580 - Maintenance Trades Helper	23.83
23591 - Metrology Technician I	34.72
23592 - Metrology Technician II	36.26
23593 - Metrology Technician III	37.63
23640 - Millwright	34.72
23710 - Office Appliance Repairer	32.79
23760 - Painter, Maintenance	24.15
23790 - Pipefitter, Maintenance	33.05
23810 - Plumber, Maintenance	31.21
23820 - Pneudraulic Systems Mechanic	34.72
23850 - Rigger	31.92
23870 - Scale Mechanic	30.53
23890 - Sheet-Metal Worker, Maintenance	37.31
23910 - Small Engine Mechanic	30.09
23931 - Telecommunications Mechanic I	42.18
23932 - Telecommunications Mechanic II	44.05
23950 - Telephone Lineman	41.35
23960 - Welder, Combination, Maintenance	29.54
23965 - Well Driller	31.59
23970 - Woodcraft Worker	34.72
23980 - Woodworker	26.11
24000 - Personal Needs Occupations	
24550 - Case Manager	24.05
24570 - Child Care Attendant	14.84
24580 - Child Care Center Clerk	18.50
24610 - Chore Aide	19.33
24620 - Family Readiness And Support Services Coordinator	24.05
24630 - Homemaker	24.05
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	42.46
25040 - Sewage Plant Operator	25.85
25070 - Stationary Engineer	42.46
25190 - Ventilation Equipment Tender	29.40
25210 - Water Treatment Plant Operator	25.85
27000 - Protective Service Occupations	

27004 - Alarm Monitor		27.41
27007 - Baggage Inspector		18.87
27008 - Corrections Officer		27.17
27010 - Court Security Officer		26.72
27030 - Detection Dog Handler		21.11
27040 - Detention Officer		27.17
27070 - Firefighter		25.41
27101 - Guard I		18.87
27102 - Guard II		21.11
27131 - Police Officer I		32.89
27132 - Police Officer II		36.56
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator		18.66
28042 - Carnival Equipment Repairer		20.45
28043 - Carnival Worker		13.33
28210 - Gate Attendant/Gate Tender		24.01
28310 - Lifeguard		15.61
28350 - Park Attendant (Aide)		26.85
28510 - Recreation Aide/Health Facility Attendant		19.60
28515 - Recreation Specialist		33.26
28630 - Sports Official		21.39
28690 - Swimming Pool Operator		24.79
29000 - Stevedoring/Longshoremen Occupational Services		
29010 - Blocker And Bracer		35.39
29020 - Hatch Tender		35.39
29030 - Line Handler		35.39
29041 - Stevedore I		32.83
29042 - Stevedore II		38.00
30000 - Technical Occupations		
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2)	34.99
30021 - Archeological Technician I		21.67
30022 - Archeological Technician II		24.24
30023 - Archeological Technician III		30.02
30030 - Cartographic Technician		30.02
30040 - Civil Engineering Technician		30.05
30051 - Cryogenic Technician I		33.25
30052 - Cryogenic Technician II		36.71
30061 - Drafter/CAD Operator I		21.67
30062 - Drafter/CAD Operator II		24.24
30063 - Drafter/CAD Operator III		27.01
30064 - Drafter/CAD Operator IV		33.25

30081 - Engineering Technician I	19.30
30082 - Engineering Technician II	21.67
30083 - Engineering Technician III	24.24
30084 - Engineering Technician IV	30.02
30085 - Engineering Technician V	36.71
30086 - Engineering Technician VI	44.42
30090 - Environmental Technician	29.12
30095 - Evidence Control Specialist	30.02
30210 - Laboratory Technician	25.61
30221 - Latent Fingerprint Technician I	33.25
30222 - Latent Fingerprint Technician II	36.71
30240 - Mathematical Technician	30.02
30361 - Paralegal/Legal Assistant I	22.73
30362 - Paralegal/Legal Assistant II	28.16
30363 - Paralegal/Legal Assistant III	34.45
30364 - Paralegal/Legal Assistant IV	41.67
30375 - Petroleum Supply Specialist	36.71
30390 - Photo-Optics Technician	30.02
30395 - Radiation Control Technician	36.71
30461 - Technical Writer I	30.02
30462 - Technical Writer II	36.71
30463 - Technical Writer III	44.42
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	33.25
30502 - Weather Forecaster II	40.44
30620 - Weather Observer, Combined Upper Air Or	
Surface Programs	(see 2) 27.01
30621 - Weather Observer, Senior	(see 2) 30.02
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	15.38
31030 - Bus Driver	22.73
31043 - Driver Courier	21.43
31260 - Parking and Lot Attendant	15.30
31290 - Shuttle Bus Driver	22.15
31310 - Taxi Driver	17.27
31361 - Truckdriver, Light	23.48
31362 - Truckdriver, Medium	25.46
31363 - Truckdriver, Heavy	29.79
31364 - Truckdriver, Tractor-Trailer	29.79
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	14.96

99050 - Desk Clerk	15.69
99095 - Embalmer	30.27
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	16.99
99252 - Laboratory Animal Caretaker II	18.62
99260 - Marketing Analyst	31.02
99310 - Mortician	30.27
99410 - Pest Controller	25.79
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	27.70
99711 - Recycling Specialist	34.43
99730 - Refuse Collector	24.59
99810 - Sales Clerk	17.51
99820 - School Crossing Guard	15.50
99830 - Survey Party Chief	28.76
99831 - Surveying Aide	19.31
99832 - Surveying Technician	25.25
99840 - Vending Machine Attendant	18.94
99841 - Vending Machine Repairer	24.26
99842 - Vending Machine Repairer Helper	18.94

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 10 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (See 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract

(either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of """"wash and wear"""" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the """"Service Contract Act Directory of Occupations""""", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are

included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

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